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| <b>PLANNING BOARD</b><br><br><b>8 April 2025</b> | <b>Agenda Item: 6</b><br><b>Reference No: 24/3879/F</b><br><b><a href="#">Application Documents</a></b> |
|--------------------------------------------------|---------------------------------------------------------------------------------------------------------|

**Applicant: Mrs Claire Brettell, Greenwich Millennium Village Ltd.**

**Agent: Mr Steve Walters, SW Planning Ltd.**

|                                                                                                                                                                                                          |                                                                                              |
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| <b>Site Address:</b><br>Maurer, Metcalfe, Holly & New Becquerel<br>Courts, Faraday, Alamaro, DaVinci & Newton<br>Lodges, Greenwich Millenium Village Phases 1<br>& 2, West Parkside, Greenwich, SE10 0BY | <b>Ward:</b> Greenwich Peninsula<br><br><b>Application Type:</b><br>Full Planning Permission |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------|

## **I Recommendation**

- I.1 That full planning permission be granted for the removal and replacement of combustible materials and build-ups in the existing external cladding materials on buildings within the original phases 1 & 2 of Greenwich Millennium Village (Maurer Court, Metcalfe Court, Faraday Lodge, Alamaro Lodge, Da Vinci Lodge, Newton Lodge, Holly Court & New Becquerel Court).
- I.2 Subject to the Conditions set out in Appendix 2 and any addendums.
- I.3 To authorise the Assistant Director (Planning & Building Control) to make any minor changes to the detailed wording of the recommended conditions as set out in the report (Appendix 2), its addendums and the minutes of this Planning Board meeting, where the Assistant Director (Planning & Building Control) considers it appropriate, before issuing the final decision notice

## **2 Executive Summary**

- 2.1 The application relates to the residential blocks which comprise phases 1 and 2 of the Greenwich Millenium Village (GMV) development located on the eastern side of Greenwich Peninsula, which is one of several Millennium Community projects to be undertaken by the Homes and Communities Agency (HCA) throughout England in the early 21<sup>st</sup> Century.
- 2.2 While the existing buildings within GMV are characterful and high quality examples of the architecture of their era, the buildings are not subject to any architectural or historical designations and are not within the setting of any listed buildings or conservation areas.

Members are recommended to grant full planning permission for the removal and replacement of combustible materials and build-ups in the existing external cladding materials on buildings within the original phases 1 & 2 of Greenwich Millennium Village (Maurer Court, Metcalfe Court, Faraday Lodge, Alamaro Lodge, Da Vinci Lodge, Newton Lodge, Holly Court & New Becquerel Court).

- 2.3 Planning permission ref: 24/4073/F submitted by the same applicant for similar cladding replacement works on GMV phase 2 blocks Becquerel Court and Farnsworth Court to the south east of the current site was granted on 19<sup>th</sup> March 2024.
- 2.4 In January 2020 the Ministry of Housing, Communities & Local Government (MHGLC) published the 'Advice for Building Owners of Multi-storey, Multi-occupied Residential Buildings' which consolidated previous guidance notes in relation to the measures Building Owners should take to review External Wall Insulation systems and Spandrel Panels to their residential blocks and to assess the surety of their fire safety, and the potential risks to residents of external fire spread. The applicant had undertaken a review of the external cladding and other elements which do not meet the appropriate standard for fire safety and require replacement.
- 2.5 The current application seeks to improve fire safety standards within the host buildings, through the improvement of the existing building fabric. This would be in line with the above policy and the principle of development is therefore acceptable.
- 2.6 The proposal would generally replacement materials on a like-for-like basis however certain existing fascia materials as well as balcony decking contain timber which does not meet the required combustibility rating of A2-s1,d0 or better and therefore must be replaced with a different material.
- 2.7 The proposal seeks to replace the existing fascia and fenestration materials as follows:

| Existing Material | Proposed Replacement Material                                     |
|-------------------|-------------------------------------------------------------------|
| Rendered cladding | Sto Render Grain: Strukturmuster I.0 / Colour matched to existing |
| Timber cladding   | Cedral Click Cocoa Brown                                          |
| Timber decking    | Ryno Balca Smart Quartz Grey / RAL 7039                           |

- 2.8 The rendered cladding would be replaced on a like for like basis with a rendered cladding board known as Sto Render Grain: Strukturmuster 1.0 / in colours to match the existing rendered cladding.
- 2.9 The existing untreated timber cladding which is a key feature of the fascia of the existing building would be replaced with a fibre cement timber effect cladding board known as Cedral Click which gives the appearance of a timber board while achieving the required combustibility rating.
- 2.10 While the Cedral Click product is designed to imitate the appearance and texture of real timber, the replacement material would differ in appearance to the existing material it would replace and would not replicate the variations in the weathered texture of the real timber boards. However, following extensive exploration of alternative materials for the timber cladding during pre-application discussions the proposed fibre cement material is considered the most suitable option and the Cedral Click product selected would maintain the character and appearance of the host buildings in accordance with the original architectural vision for the development.
- 2.11 The timber decking on the balconies would be replaced with aluminium decking which would be a high quality and sympathetic material which would preserve the character of the buildings.
- 2.12 Subject to the implementation of an appropriate Construction Management Plan secured by condition in Appendix 2 of this report, the proposal would be expected to have an acceptable impact on the amenity of the residents of the affected blocks and the other surrounding properties, consistent with policies D13 and D14 of the London Plan and Policy E(a) of the Royal Greenwich Local Plan Core Strategy (2014).
- 2.13 Subject to the implementation of an appropriate Construction Logistics Plan secured by condition in Appendix 2 of this report, the proposed scheme of works would be expected to have an acceptable impact on the surrounding highway network.
- 2.14 Subject to the implementation of tree protection measures and a Construction Environmental Management Plan as secured by conditions in Appendix 2 of this report, the development is unlikely to have significant impacts on nearby Sites of Importance for Nature Conservation (SINCs), as mitigation measures such as pollution prevention and noise reduction are planned.

- 2.15 The applicant has submitted a Planning Fire Statement ref: AF4637 issue 01 dated 12/11/2024 prepared by Ashton Fire, a suitably qualified assessor, as well as fire classification documents for the replacement cladding, which confirm that the replacement external façade materials would be acceptable in terms of fire risk and that the external façade materials used shall have a combustibility classification of A1 or A2-s1, d0. A full assessment of the fire safety falls outside of the scope of this planning application and would be fully assessed at Building Control stage.
- 2.16 It is considered that the proposal would seek to achieve compliance with relevant regulations and has achieved a design solution which would continue to respect the character and appearance of the area without having any unacceptable impacts on the living conditions of neighbouring properties. The proposal is therefore considered to accord with Development Plan policies and guidance specified above subject to the conditions in the decision notice.
- 2.17 Accordingly, it is recommended that permission be **granted** for application reference 24/3879/F, in line with Section 1 of this report.

### 3 **Application Summary**

- 3.1 Detailed below is a summary of the application:

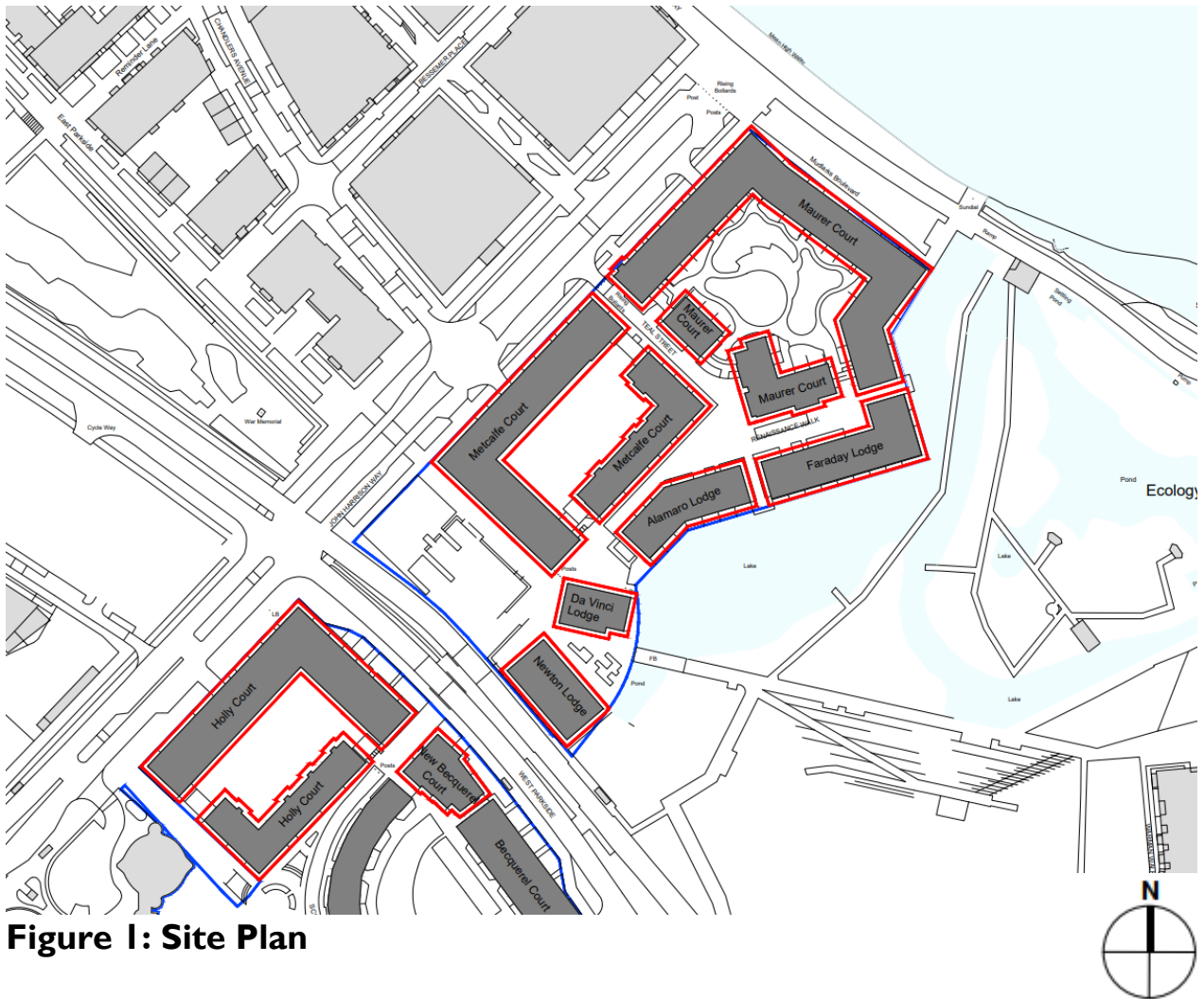
| <b>The Site</b>                    |                    |
|------------------------------------|--------------------|
| Site Area (m <sup>2</sup> ) / (Ha) | 11000 sqm / 1.10Ha |
| Local Plan Allocation              | None.              |
| Heritage Assets                    | None.              |
| Tree Preservation Order            | None.              |
| Flood Risk Zone                    | Flood Zone 3       |

| <b>Public Consultation</b> |                                                                                                                                                                                                                                                                                                                                                                |
|----------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Number in support          | 1                                                                                                                                                                                                                                                                                                                                                              |
| Number of objections       | 65                                                                                                                                                                                                                                                                                                                                                             |
| Summary of objections      | <b>Architectural Integrity and Design:</b> <ul style="list-style-type: none"> <li>Residents are concerned that the proposed materials and designs do not preserve the original architectural character, particularly the distinctive vertical and horizontal lines on the elevations of Maurer Court, which are integral to Ralph Erskine's design.</li> </ul> |

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|--|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  | <ul style="list-style-type: none"> <li>• The original vibrant colour scheme and wooden cladding are seen as essential to the buildings' identity and should be retained or replicated.</li> </ul> <p><b>Material Choices:</b></p> <ul style="list-style-type: none"> <li>• There is opposition to replacing wooden cladding with cement boards, suggesting alternatives like Cortan steel or redesigned fire-safe wooden cladding.</li> <li>• The proposed render colours are considered too muted compared to the original bright scheme.</li> </ul> <p><b>Consultation and Representation:</b></p> <ul style="list-style-type: none"> <li>• Leaseholders express dissatisfaction with the consultation process, feeling excluded from key discussions and lacking representation by professional advisors.</li> <li>• There is a call for more inclusive engagement to ensure that residents' concerns are addressed.</li> </ul> <p><b>Timing and Cost:</b></p> <ul style="list-style-type: none"> <li>• Residents find the proposed timeline for remediation works unacceptable, advocating for an earlier start and completion.</li> <li>• There is a perception that developers are opting for the cheapest solutions rather than prioritizing architectural integrity and resident satisfaction.</li> </ul> |
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- 3.2 The report details all relevant national, regional and local policy implications of the scheme, including supplementary planning guidance.
- 3.3 The application is considered to be acceptable and is recommended for approval subject to the conditions set out in the Appendix 2.

## Site Plan



**Figure 1: Site Plan**

### **4 Site and Surroundings**

- 4.1 The application site comprises of the residential blocks Maurer, Metcalfe, Holly & New Becquerel Courts, Faraday, Alamaro, DaVinci & Newton Lodges located on the south eastern side of John Harrison Way which form phases 1 and 2 of Greenwich Millennium Village (GMV) which forms a key part of the redevelopment and regeneration of the Greenwich Peninsula. The Village was the first of several Millennium Community projects to be undertaken by the Homes and Communities Agency (HCA) throughout England.
- 4.2 Phase 1 of Greenwich Millennium Village (GMV) includes 527 apartments with blocks of 4 to 13 storeys, mostly with balconies, terraces or sun decks, which are carefully positioned to maximise sunlight and daylight provision. Some units front onto Swan Lake and others command views over the Thames. The highest buildings within Phase 1 are at the corner of John Harrison Way and the River Thames, at 13 storeys.

- 4.3 Phase 2 includes 568 units in five courtyards south-west of West Parkside. The courtyards include a mixture of affordable family homes and 4-8 storey apartment buildings.
- 4.4 Beyond these two phases of Greenwich Millennium Village is the wider Greenwich Peninsula development including phases 3, 4 and 5 of GMV to the south east of phases 1 and 2 which are currently being implemented.
- 4.5 The existing Village is characterised by a bold architectural language with a rich and colourful mixture of materials as well as raised podium decks and the absence of cars on the predominately pedestrian streets.
- 4.6 Directly abutting the site along the eastern boundary is Southern Park and the Greenwich Peninsula Ecology Park which are both designated as Metropolitan Open Land (MOL) and a Site of Importance for Nature Conservation (SINC). The site is also located within Flood Zone 3.
- 4.7 The site is not located within a conservation area or in the vicinity of any listed buildings. The Grade II listed building 70-84 River Way and the locally listed building The Pilot Public House on River Way are located 220m to the north west of the site and due to the significant intervening distance and the nature of the current proposal are not considered to be in the vicinity of the application site.
- 4.8 Closer to the site is a grade II listed East Greenwich Gas Works War Memorial located 50m to the north west of the site within Peninsula Park.
- 4.9 The site is located within the Thames Policy Area.

## **5 Relevant Planning History**

- 5.1 Outline planning permission for Greenwich Millennium Village (the original GMV Masterplan) was granted in May 1999 (ref: 98/1189/O) for 1,377 residential dwellings (298 houses and 1,079 maisonettes and flats), with community facilities comprising a mixed-use commercial centre including mixed retail (Classes A1 (Shops), A2 (Financial and Professional Services) and A3 (Restaurants and Cafes)) and business (Class B1) uses; a health clinic, a teleservices centre; temporary visitors centre, a primary school, a crèche, community buildings and associated landscaped open space with water features.

- 5.2 The GMV Masterplan comprised five phases of development. Detailed planning permissions for Phases 1 and 2 have been granted and these phases are now complete and fully occupied. The phases are as follows:
- 99/2740/F full planning permission for Phase 1A (100 dwellings) was granted in April 2000;
  - 00/0263/F full planning permission for Phase 2A (186 dwellings) was granted in May 2000;
  - 01/1222/F full planning permission for Phase 1B (199 dwellings) was granted in April 2001;
  - 02/0221/F full planning permission for Phase 2B (186 dwellings) was granted in October 2002;
  - 04/0605/F full planning permission for Phase 1E (196 dwellings) was granted in December 2004; and
  - 06/0468/F full planning permission for Phases 1C and 1D (228 dwellings) and Village Square for 1,357m<sup>2</sup> mixed floorspace (Classes A1, A2, A3, A4 (Drinking Establishments) and A5 (Takeaways)) was granted in May 2006, inclusive of a Section 106 legal agreement.
- 5.3 In 1999 permission was granted for 1,377 residential dwellings ref: 98/1189/O. However, following changes in national planning policy, with the London Plan Spatial Development Strategy for Greater London first published in February 2004 and justified by the high quality of design achieved at the development, 1,095 new homes have been constructed in Phases 1 and 2, as granted under the detailed permissions referred to above.
- 5.4 In March 2012 outline planning permission was granted for a mixed use development comprising: up to a total of 1,746 Class C3 residential units; up to a total of 1,190 sq.m (GEA) Flexible Class A1 (shops) and/or A2 (financial and professional services) and/or A3 (restaurants and cafes) and/or A4 (drinking establishments); up to a total of 4,462 sq.m (GEA) business space for B1(a) (offices) and/or B1(b) (research and development) and/or B1(c) (light industry); up to 500 sq.m (GEA) Class D1 for a children's nursery; up to a total of 750 sq.m (GEA) Class D2 for community space and a management facility; up to a total of 992 sq.m (GEA) for two energy centres; associated open space, hard and soft landscaping, car parking and servicing, highways and transport works and ancillary works; with all matters reserved for future approval except for access (Outline Application). In addition to the matters set out above, full details (access, appearance, landscaping, layout, scale) in relation to the first sub-phase, being Parcel 1, located to the north and east of the site for: 459 residential units; a 365 sq.m energy centre; associated open space, hard and soft landscaping, car parking and servicing, highways and



transport works and ancillary works. This consent is currently being implemented.

- 5.5 24/4073/F - Becquerel Court and Farnsworth Court, West Parkside, Greenwich, SE10 0QF for The removal and replacement of combustible materials and build-ups in the existing external cladding materials on buildings within the original phases 1 & 2 of Greenwich Millennium Village (Becquerel Court and Farnsworth Court)” located at West Parkside, Greenwich. Granted 19<sup>th</sup> March 2025.

## **6 Proposals (in detail)**

- 6.1 The current application seeks full planning permission for the following:

*‘The removal and replacement of combustible materials and build-ups in the existing external cladding materials on buildings within the original phases 1 & 2 of Greenwich Millennium Village (Maurer Court, Metcalfe Court, Faraday Lodge, Alamaro Lodge, Da Vinci Lodge, Newton Lodge, Holly Court & New Becquerel Court)’*

- 6.2 Planning permission ref: 24/4073/F submitted by the same applicant for similar cladding replacement works on GMV phase 2 blocks Becquerel Court and Farnsworth Court to the south east of the current site was granted on 19<sup>th</sup> March 2024.
- 6.3 Officers consider that the applications could be determined separately despite similar replacement materials being proposed because the GMV phase 2 blocks Becquerel Court and Farnsworth Court are largely separated from the blocks in the current application and the architecture of the respective blocks differ significantly and as such are juxtaposed rather than cohesive.
- 6.4 Becquerel Court and Farnsworth Court are largely separated from the phase 1 blocks to the north by West Parkside except for Holly Court and New Becquerel Court which are directly adjacent to Becquerel Court on the southern side of West Parkside.
- 6.5 The façade materials of the Holly Court and New Becquerel Court and the GMV 1 blocks to the north are characterised by large expanses of rendered cladding in a variety of colours as well as varying amounts of untreated weathered timber cladding and face brickwork at ground floor level. The Becquerel Court blocks are characterised primarily by rectangular terracotta

tiles and predominantly white render as well as sections of red painted timber cladding which looks quite different to the bare timber cladding on the other blocks which has weathered over the years.

- 6.6 The nature of the two application proposals also differs in that the current application for Maurer, Metcalfe, Holly & New Becquerel Courts, Faraday, Alamaro, DaVinci & Newton Lodges seeks to replace the rendered cladding whereas the other application would retain the existing rendered cladding on Becquerel Court and Farnsworth Court. The existing timber cladding on Becquerel Court and Farnsworth Court is painted red and would be replaced by Cedral Cedral Click Brick Red Cladding whereas on the blocks in the current application the existing bare weathered timber cladding would be replaced by Cedral Click Cocoa Brown.

## **7 Consultation**

- 7.1 Since being submitted in November 2024, the application has been subject to a public consultation comprising of:
- Ward Councillors were notified on 12<sup>th</sup> December 2024;
  - 1102 neighbouring properties were notified by individual letters on 12<sup>th</sup> December 2024 (including all adjoining properties);
  - 6 x site notices were displayed on site on 22<sup>nd</sup> January 2025.
  - A press notice was run on 18<sup>th</sup> December 2024.
- 7.2 A summary of the consultation responses follows below:

### ***Responses from Council Departments***

- 7.3 A summary of the consultation responses received along with the officer comments are set out in table below:

| <b>Consultee:</b>                                              | <b>Highways Officer</b>       |
|----------------------------------------------------------------|-------------------------------|
| <b>Date received:</b>                                          | 10 <sup>th</sup> January 2025 |
| <b>Summary of consultation response:</b><br><br>No objections. |                               |
| <b>Officer comments on consultation response:</b>              |                               |

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| <b>Consultee:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | <b>Environmental Health</b>    |
| <b>Date received:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 17 <sup>th</sup> February 2025 |
| <b>Summary of consultation response:</b><br><br><p>The Pollution Control Team is aware of the UK government's 2029 deadline for removal of unsafe cladding in addressing fire safety concerns post-Grenfell fire. All buildings over 59ft (18m) tall with unsafe cladding on the government scheme will have been remediated by 2029 and buildings over 36ft (11m) tall with unsafe cladding will either have to be remediated or have a date for completion by 2029. We therefore have no further objections to this work but advice that you please seek an input from the Building Control team for any other concerns.</p> |                                |
| <b>Officer comments on consultation response:</b><br><p>Noted.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                |

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| <b>Consultee:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>Urban Design Officer</b> |
| <b>Date received:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 17 <sup>th</sup> March 2025 |
| <b>Summary of consultation response:</b><br><br><p>The proposed Sto render colours described at page 18 of the submitted Design and Access Statement are considered as a good match to the existing render colours on the site and are not objected to in these terms. However, following the objection from Alamaro Lodge RTM Company Ltd in charge of managing the homonymous building, it is considered that further clarification should be provided on how the agreed colours would weather and if this would bring to decoloured facades in the next decade. The alternative option of slightly more vivid colours in line with the original ones could be quickly explored and its implications explained to the Council. It is recommended that in any case the shapes and detail of render on facade should match the existing.</p> <p>In strictly design terms, concern was expressed throughout the design process about the proposed fibre-cement products to replace the existing timber on facade. The lack of practical alternative options that would work with the architectural character of the buildings and the naturalistic environment of the Ecology Park while also meeting the current Building regulations on Fire Safety, convinced the Council to negotiate on the best possible version of fibre-cement products available on the market. Cedar Click was identified as the best product among those presented by the applicants, in its Clay Brown, Cocoa Brown and Brick Red versions.</p> |                             |

No concern is raised in design terms on the proposed aluminium Balca-Smart decking system by Ryno.

The proposed aluminium brise-soleil to replace the removed timber ones, are not objected to in materiality terms. The dimensions of the individual elements of the brise soleils, including their height and thickness, should be broadly in keeping with the removed ones.

**Officer comments on consultation response:**

Noted, the choice of the proposed render colours is discussed in Section 11 of this report.

***Responses from Statutory and External Consultees***

- 7.4 A summary of the consultation responses received along with the officer comments are set out in table below:

|                                                                                                                                                                                                                                                                                                                                                  |                                |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------|
| <b>Consultee:</b>                                                                                                                                                                                                                                                                                                                                | <b>Environment Agency</b>      |
| <b>Date received:</b>                                                                                                                                                                                                                                                                                                                            | 13 <sup>th</sup> December 2024 |
| <b>Summary of consultation response:</b>                                                                                                                                                                                                                                                                                                         |                                |
| Thank you for consulting us on the above application.<br>We have assessed this application as having a low environmental risk. We therefore have no comments to make.<br>Whilst the site is located within Flood Zone 3 and in proximity to the Thames Tidal flood defences, the works are not anticipated to impact flood risk or the defences. |                                |
| <b>Officer comments on consultation response:</b>                                                                                                                                                                                                                                                                                                |                                |
| Noted.                                                                                                                                                                                                                                                                                                                                           |                                |

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| <b>Consultee:</b>                                                                                                                                                                                                                                                                   | <b>Health &amp; Safety Executive</b> |
| <b>Date received:</b>                                                                                                                                                                                                                                                               | 10 <sup>th</sup> January 2025        |
| <b>Summary of consultation response:</b>                                                                                                                                                                                                                                            |                                      |
| <u>Scope of consultation</u>                                                                                                                                                                                                                                                        |                                      |
| The above application relates to the removal and replacement of combustible materials and build-ups in the existing external cladding materials on buildings within the original phases 1 & 2 of Greenwich Millennium Village (Maurer Court, Metcalfe Court, Faraday Lodge, Alamaro |                                      |

Lodge, Da Vinci Lodge, Newton Lodge, Holly Court & New Becquerel Court).

The buildings were constructed between 2001 and 2009.

Page 2 (Introduction) of the Design and Access Statement (DAS) states: *“This report has been written in support of an application for planning permission **to undertake the necessary facade remedial works required to remove and replace combustible materials** and build-ups identified in the Fire Risk Assessment External Walls (FRAEW) reports undertaken... and to reflect the advice provided previously by the Royal Borough of Greenwich.”*

Additionally, the ‘Cover letter’ (dated 26/11/2024) states: *“The reason for the application **is the need to remove and replace elements of the existing cladding materials** currently in-situ on the external facades of the below buildings, **which following a Fire Risk Appraisal of External Walls (FRAEW)** in accordance with the latest fire safety guidance in PAS 9980 **have been assessed as ‘combustible’** external wall and attachments (e.g. balconies, etc.) and **which contribute to an ‘intolerable’ risk rating.** It is **proposed to replace these materials** with materials which have a reaction to fire classification **of at least Class A2-s1,d0**, in accordance with BS EN 13501-1.”*

The development consists of:

- Metcalfe Court: 11-storeys with a height of 30.1m
- Da Vinci Lodge: 7-storeys with a height of 18.5m
- Alamaro Lodge: 9-storeys with a height of 22.8m
- Faraday Lodge: 10-storeys with a height of 25.6m
- Maurer Court: 10-storeys with a height of 25.6m
- Holly Court: 9-storeys with a height of 25.9m
- New Becquerel Court: 8-storeys with a height of 20.1m
- Becquerel Court: 8-storeys with a height of 22.8m
- Newton Lodge: 9-storeys with a height of 24.3m.

The fire statement dated 12/09/2024 states that the adopted fire safety design standards are Approved Document B vol 1, Approved Document B vol 2 and PAS 9980:2022. HSE has assessed this application on that basis.

Paragraph 1.4.2 of the ‘London Planning Fire Statement’ states: *“The buildings are purpose-built residential towers with some small commercial units at the ground level of Metcalfe Court and Newton Lodge. There are no basements though Metcalfe Court and Holly Court have outdoor podiums with car parking*

and ancillary -use areas beneath. All the residential buildings are arranged with single stair access though the larger blocks have multiple stair cores.

Paragraph 1.4.3 of the same document states: "... have provided various fire safety consultancy services for the project since February 2021. **Most recently, this has included undertaking a fire risk appraisal of the external walls of these building.** This has resulted in recommendations for works to the external walls of all buildings **in order to achieve a tolerable level of risk** in accordance with the guidance set out in PAS 9980."

#### Consultation

Section 2 of the fire statement states: "The proposed project is the remediation to the external walls of the ten blocks following a Fire Risk Appraisal of External Walls (FRAEW) in accordance with the latest fire safety guidance in PAS 9980. The principle of the works is **to remove the combustible external wall and attachment** (balconies, etc.) materials which contribute to an intolerable risk rating **and replace them with materials** which have a reaction to fire classification **of at least Class A2-s1,d0** in accordance with BS EN 13501-1."

HSE welcomes the remediation of the external wall systems within the development.

Following a review of the information provided in the planning application, HSE is content with the fire safety design as set out in the project description, to the extent it affects land use planning considerations.

#### **Officer comments on consultation response:**

Noted.

|                                                                                                                                                                                                                                                                                                                                                                                                       |                                   |
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| <b>Consultee:</b>                                                                                                                                                                                                                                                                                                                                                                                     | <b>Transport for London (TfL)</b> |
| <b>Date received:</b>                                                                                                                                                                                                                                                                                                                                                                                 | 9 <sup>th</sup> January 2025      |
| <b>Summary of consultation response:</b>                                                                                                                                                                                                                                                                                                                                                              |                                   |
| <u>Construction Logistics Plan (CLP):</u>                                                                                                                                                                                                                                                                                                                                                             |                                   |
| <ul style="list-style-type: none"><li>• TfL notes that the submitted CLP is not final and recommends requiring detailed CLPs on a phase-by-phase basis to address issues like temporary closures of footways and traffic lanes.</li><li>• Deliveries should be timed to avoid peak pedestrian and cyclist times, such as the 'school run', and specific delivery times should be confirmed.</li></ul> |                                   |

#### Safety and Access:

- The proposal to prevent vehicles from reversing onto highways is welcomed, but concerns are raised about pedestrian safety and potential conflicts with residents' access.
- Detailed CLPs should ensure pedestrian safety and utilize traffic marshals where necessary.

#### Facilities for Contractors:

- To align with transport policies, facilities like showers and cycle parking should be provided from the outset to encourage sustainable travel modes.
- No car parking should be provided for contractors to support a Strategic Mode Shift target.

#### Traffic Impact:

- The proposal forecasts 4-5 trucks per day per phase, with a maximum of 8-10 trucks during phase overlaps, which is considered unlikely to significantly impact the local transport network.
- TfL welcomes the use of CLOCS and FORS Silver standard accredited contractors.

#### **Officer comments on consultation response:**

A full construction management and logistics plan is secured by condition.

| <b>Consultee:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | <b>Port of London Authority</b> |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|
| <b>Date received:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 20 <sup>th</sup> December 2024  |
| <b>Summary of consultation response:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                 |
| <p>I have now had the opportunity to review the submitted documents and can confirm the PLA has no objection to the proposed development and has the following comments to make.</p> <p>Within the Outline Construction Logistics Plan (CLP) under section 5.7 (Measures to Encourage Sustainable Freight) it is stated that there may be an opportunity to take advantage of the site location to utilise maritime transport to reduce the volume of construction vehicles travelling by road although at this stage it is considered unlikely to be a realistic proposition. The section further recognises that there are six designated safeguarded wharf sites within the Royal Borough of Greenwich, so therefore there is potential for one of these wharves to be utilised for the delivery of materials and/or removal of waste through the supply chain subject to further investigation. Section 7.1 further states that a detailed CLP will be</p> |                                 |

submitted for approval by the Royal Borough of Greenwich prior to the commencement of works. The PLA considers that the submission of a detailed CLP must be secured by condition as part of any forthcoming planning permission, and that this should include detailed consideration of the potential to utilise the Tidal Thames through the supply chain as part of the project, including details of communication with nearby safeguarded wharf operators. This would be in line with London Plan policy S115 (Water Transport) which states that development proposals close to navigable waterways should maximise water transport for bulk materials during demolition and construction phases.

**Officer comments on consultation response:**

A full construction management and logistics plan has been secured by condition.

|                                                                                                                                                                                                                                                                                                                                                                                                                      |                            |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------|
| <b>Consultee:</b>                                                                                                                                                                                                                                                                                                                                                                                                    | <b>London Fire Brigade</b> |
| <b>Date received:</b>                                                                                                                                                                                                                                                                                                                                                                                                | 8 <sup>th</sup> March 2025 |
| <b>Summary of consultation response:</b> No objection.<br><br>The London Fire Commissioner (the Commissioner) is the fire and rescue authority for London. The Commissioner is responsible for enforcing the Regulatory Reform (Fire Safety) Order 2005 (as amended) in London.<br>The London Fire Brigade (LFB) has been consulted regarding the above-mentioned premises and have no further observations to make. |                            |
| <b>Officer comments on consultation response:</b><br>Noted.                                                                                                                                                                                                                                                                                                                                                          |                            |

***Responses from Amenity Groups***

- 7.5 A summary of the consultation responses received along with the officer comments are set out in table below:

|                                                   |                                  |
|---------------------------------------------------|----------------------------------|
| <b>Consultee:</b>                                 | <b>Twentieth Century Society</b> |
| <b>Date received:</b>                             | No response received.            |
| <b>Summary of consultation response:</b>          |                                  |
| <b>Officer comments on consultation response:</b> |                                  |



## ***Members of the public***

- 7.6 A summary of the consultation responses received along with the officer comments are set out in table below:

| <b>Public Consultation</b> |    |
|----------------------------|----|
| Number in support          | 1  |
| Number of objections       | 65 |

| <b>Summary of Objections</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                              |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------|
| <u>Comments:</u>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | <u>Officer Response:</u>                                     |
| <b>Wooden Cladding Replacement:</b> <ul style="list-style-type: none"><li>• Object to replacing the iconic wooden cladding with cement boards, suggesting instead materials like Cortan steel that age over time, maintaining the buildings' architectural merit.</li><li>• Concerns raised that the proposed replacement material, Cedral Click Cocoa Brown, would appear as a monotonous, uniform material which would detract from buildings of local and national importance.</li><li>• Concerns were also raised that the Cedral Click Cocoa Brown would not be sufficiently durable and would deteriorate overtime.</li></ul> | Design appearance is discussed in section 11 of this report. |
| <b>Render Colour:</b> <ul style="list-style-type: none"><li>• Object to the proposed render colours due to concerns they would appear faded. Prefer restoring the original vibrant colour scheme (bright red, deep black, grey, and vibrant orange) rather than using muted colours proposed in the plan.</li></ul>                                                                                                                                                                                                                                                                                                                 | Design appearance is discussed in section 11 of this report. |

|                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>Render Material:</b></p> <ul style="list-style-type: none"> <li>Objectors raised concerns that the insulative properties of the proposed replacement cladding materials would not match the existing materials and some objectors advocate for better insulation, such as using StoTherm Mineral, to improve building performance.</li> </ul> | <p>Design appearance is discussed in section 11 of this report.</p> <p>With regards to the insulative properties of the replacement materials the applicant has advised that In accordance with Building Regulations Part L1(a) Conservation of Fuel and Power – ‘Renovated and retained elements 4.11 The U-value of an existing thermal element that is being renovated should both: a. be no worse than that of the element before it was renovated b. meet the limiting standards in Table 4.3’.</p> <p>The original u-value for wall type 6 in question, was 0.66(W/m<sup>2</sup>K) and there has been an improvement made to 0.55(W/m<sup>2</sup>K). This clearly satisfies building regulations, as per the table above. The Alamaro and Faraday blocks have a different render build ups and therefore StoTherm Mineral has not been specified for these blocks, as it is not required. A Sto product has been specified which will look the same externally as the other blocks.</p> |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                         |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>Decking Material:</b></p> <ul style="list-style-type: none"> <li>Some objectors expressed concerns that the proposed replacement aluminium decking would be noisier due to raindrops and footsteps.</li> </ul>                                                                                                                                                                         | <p>Design is discussed in section 11 of this report.</p>                                                                                                                                                                                                                |
| <p><b>Bat Boxes:</b></p> <ul style="list-style-type: none"> <li>Objectors suggest dropping the plan for bat boxes due to low probability of bat nesting and potential for attracting vermin.</li> </ul>                                                                                                                                                                                      | <p>Ecology is discussed in section 12 of this report.</p> <p>Bird and bat boxes are routinely integrated into existing and proposed developments due to the ecology benefits they provide, and they do not typically result in rodent issues if properly installed.</p> |
| <p><b>Demolition and Construction:</b></p> <ul style="list-style-type: none"> <li>Objectors expressed concern about the impact of scaffolding and screening on natural light and privacy as well as noise and disturbance during implementation of the proposed works.</li> <li>Concerns were also expressed about the impact of the proposed scheme of works on highways access.</li> </ul> | <p>Highways and transport is discussed in section 14 of this report.</p>                                                                                                                                                                                                |
| <p><b>Consultation and Timing:</b></p> <ul style="list-style-type: none"> <li>Concerns about the lack of consultation with leaseholders and the tight deadline for responding to the planning application.</li> </ul>                                                                                                                                                                        | <p>The consultations undertaken on this application are discussed in paragraph 7.1 of this report.</p>                                                                                                                                                                  |
| <p><b>Fire Safety:</b></p> <ul style="list-style-type: none"> <li>Objectors emphasize the urgency of completing the work quickly to ensure fire safety and alleviate stress on residents who have been waiting for years.</li> </ul>                                                                                                                                                         | <p>Fire safety is discussed in section 15 of this report.</p>                                                                                                                                                                                                           |

## Councillors

- 7.7 A summary of the consultation responses received along with the officer comments are set out in table below:

|                                                   |                                 |
|---------------------------------------------------|---------------------------------|
| <b>Consultee:</b>                                 | <b>Councillor David Gardner</b> |
| <b>Date received:</b>                             | No response received.           |
| <b>Summary of consultation response:</b>          |                                 |
| <b>Officer comments on consultation response:</b> |                                 |

|                                                   |                                 |
|---------------------------------------------------|---------------------------------|
| <b>Consultee:</b>                                 | <b>Councillor Nick Williams</b> |
| <b>Date received:</b>                             | No response received.           |
| <b>Summary of consultation response:</b>          |                                 |
| <b>Officer comments on consultation response:</b> |                                 |

|                                                   |                                         |
|---------------------------------------------------|-----------------------------------------|
| <b>Consultee:</b>                                 | <b>Councillor Denise Scott-Mcdonald</b> |
| <b>Date received:</b>                             | No response received.                   |
| <b>Summary of consultation response:</b>          |                                         |
| <b>Officer comments on consultation response:</b> |                                         |

| <b>Summary of Supports</b>                                                                                                                                                                                                                                                                                                                                                                                                                                           |                          |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| <b>Comments:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                     | <b>Officer Response:</b> |
| The current state of the buildings poses significant safety risks, necessitating immediate action and should not be held up by the planning authority. The proposed materials align with the existing structures, ensuring consistency. Notably, bats frequently circle my balcony on the top floor of Metcalfe Court, likely originating from the adjacent Ecology Park. The proposed render, an A2 silicon product, boasts a 30-year maintenance period, requiring | Noted                    |

|                                                                                                                                                                                                                                                                                                                      |  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| only occasional jet washing. Adhering to Part L of the building regulations, the U-values should not fall below current standards. I strongly recommend adopting the Mydek Luxura product for the balconies, as it significantly reduces noise from aluminium decking and prevents overheating during summer months. |  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|

## 8 **Planning Context**

8.1 This application needs to be considered in the context of a range of national, regional and local planning policies and Supplementary Planning Guidance / Documents.

- **National Planning Policy Framework (NPPF – December 2024)**
- **The London Plan (March 2021)** - Full details of relevant policies refer to appendix 3.
- **The Royal Greenwich Local Plan: Core Strategy with Detailed Policies (“Core Strategy” – 2014)** - Full details of relevant policies refer to appendix 3.
- Full details of relevant SPD / Documents refer to appendix 3.

## 9 **Material Planning Considerations**

9.1 This section of the report provides an analysis of the specific aspects of the proposed development and the principal issues that need to be considered in the determination of the planning application (Ref: 24/2634/F):

- Principle of Development (Section 10)
- Design, scale and heritage impact of the works to the application site (Section 11)
- Biodiversity Trees and Landscaping (Section 12)
- Residential Amenity (Section 13)
- Transport, Access & Delivery/Serviceing (Section 14)
- Fire Safety (Section 15)
- Equality Impacts (Section 16)
- Community Infrastructure Level (CIL) (Section 17)
- RBG CIL (Section 18)

## **10 Principle of Development**

- 10.1 The overriding objective of the Royal Greenwich policy framework is to deliver high quality development which improves the quality and distinctive identity of places and contributes to their success and the area's popularity as somewhere to live, work and stay.
- 10.2 Policy D12 of the London Plan outlines that, in the interests of fire safety and to ensure the safety of all building users, all development proposals must achieve the highest standards of fire safety.
- 10.3 As such, Policy D12 requires Fire Statements to be submitted with applications which impact on Fire Safety.
- 10.4 The current application seeks to improve fire safety standards within the host buildings, through the improvement of the existing building fabric. This would be in line with the above policy, which among other things, seeks to ensure developments are constructed in an appropriate way to minimise the risk of fire spread and incorporate appropriate features which reduce the risk to life and the risk of serious injury in the event of a fire.
- 10.5 On this basis, no objections are raised with regard to the principle of the proposed development, a more detailed assessment of the fire safety of the development follows later in this report.

## **11 Design, Townscape and Heritage Impact**

- 11.1 Section 12 of the NPPF sets out the Government's objectives for achieving well-designed places. Paragraph 131 states that the creation of high-quality, beautiful and sustainable buildings and places is fundamental to what the planning and development process should achieve.
- 11.2 Policy DH1 of the Core Strategy requires that all developments be of a high-quality design and demonstrate that they positively contribute to the built and natural environment. The policy goes on to list the expectations of new development in achieving this policy aim.
- 11.3 The eight buildings included in this application host a wide range of external materials, predominantly brickwork to the ground floor and first floor elevations with a variety of coloured render and timber cladding to the upper floors.

11.4 Upper stories are characterised by standing seam zinc clad projecting bays, encompassing penthouse and maisonette apartments. Alamaro Lodge and Faraday Lodge have standing seam zinc oriel windows on their Northern elevations.

11.5 Across all of the blocks the existing facade materials on the blocks include:

- Brickwork
- Render
- Weathered timber cladding
- Standing seam aluminium cladding
- Standing seam zinc cladding
- Louvres/brise soleil in timber with metal frame

11.6 The materials on each block would be replaced as follows:

| Existing Material | Proposed Replacement Material                                     |
|-------------------|-------------------------------------------------------------------|
| Rendered cladding | Sto Render Grain: Strukturmuster 1.0 / Colour matched to existing |
| Timber cladding   | Cedral Click Cocoa Brown                                          |
| Timber decking    | Ryno Balca Smart Quartz Grey / RAL 7039                           |

11.7 The existing rendered cladding does not comply with the Building Regulations requirement to achieve a combustibility rating of A2-s1,d0 or better and therefore must be replaced. The proposed replacement rendered cladding would be Sto Render Strukturmuster 1.0 / Colour matched to existing render which would be a like-for-like replacement in terms of its texture and colour compared against the existing finish.

11.8 The colour of the Strukturmuster 1.0 is proposed to match the more muted and faded colour of the existing cladding as it currently presents rather than the brighter and more vibrant colours of the existing cladding when first installed on the buildings because the more muted tones proposed are more in keeping with the existing appearance of the buildings.

11.9 The key issue is that all blocks need to be treated in the same way, to ensure consistency across the Village.

- 11.10 Several of the blocks, Maurer Court, Faraday Lodge Alamaro Lodge, have silver horizontal and vertical stripes on the rendered elements of the façade which contribute to the character of the buildings and help to break up the extent of the rendered panels on the façade and a condition requiring the reinstatement of these stripes on the relevant blocks is secured by condition in Appendix 2 of this report.
- 11.11 The existing timber cladding cannot be replaced with real timber because the replacement materials are required by Building Regulations to achieve a combustibility rating of A2-s1,d0 or better which real timber cannot achieve. The proposed replacement material, Cedral Click in Coco Brown, is a fibre cement board which does achieve the required combustibility rating and while the product is designed to imitate the appearance and texture of real timber, the replacement material would differ in appearance to the existing material it would replace.
- 11.12 However, following extensive exploration of alternative materials for the timber cladding during pre-application discussions the proposed fibre cement material is considered the most suitable option and the Cedral Click product would satisfactorily recreate the textured appearance of the real timber it would replace although it would weather much less so than real timber and much more uniformly and as such would not recreate the varied colour and texture which has developed on the buildings overtime.
- 11.13 The proposed Cedral Click in Coco Brown would however maintain the overall material composition of the buildings as well as their character and appearance overall and is therefore considered to be an acceptable replacement material.
- 11.14 The alternative material options considered at pre-application stage for the replacement of the existing timber cladding included aluminium cladding, rendered cladding and perforated metal cladding, and while these materials have their own merits, being authentic in their premise rather than an imitation product and the material finish would be higher quality, due to the extensive use of both metal and rendered cladding on the buildings, to supplement these materials for the existing timber would upset the material composition of the buildings.
- 11.15 Corton Steel cladding has been highlighted in the public consultation responses as a possible alternative to the proposed fibre cement timber effect cladding but was not considered in the materials study conducted at pre-application stage. However, for similar reasons as outlined above Corton



Steel would not complement the existing material composition of the blocks which already features extensive metal cladding in the form of standing seam zinc and aluminium cladding and would significantly alter the appearance of the building and balance of the material palette.

- 11.16 The applicant has also advised that the material properties of Corton Steel would not be appropriate from a thermal performance perspective or an environmental perspective because Corton Steel is less thermally efficient and prone to rusting and staining from water run-off which would stain the other parts of the building and risk polluting the surrounding environment including the adjacent Southern Park and the Greenwich Peninsula Ecology Park which are both designated as Metropolitan Open Land (MOL) and a Site of Importance for Nature Conservation (SINC).
- 11.17 The applicant also advises that Corten steel requires a 50mm minimum cavity and this wall type currently has a 35mm cavity. Therefore, this will increase the wall depth without any additional insulation which could mean that awkward junctions / details to adjacent materials will occur and protrusion of the steel panels.
- 11.18 Reference is also made in the public consultation responses to high-pressure treated porcelain cladding as another potential alternative replacement material however no further details of this material are forthcoming, and it is not apparent that this material would be appropriate and not raise issues similar to those discussed above.
- 11.19 Officers reiterate that the proposed Cedral Click product while not a perfect substitute for the existing timber cladding for the reasons already discussed, it is considered the most appropriate substitute following extensive consideration of the alternative options. The Cedral Click product has been specifically designed for this application and benefits from a 25-year warranty and is expected to be amenable to reasonable routine maintenance such that it would be sufficiently durable over the long term.
- 11.20 Alternative fibre cement timber effect cladding products were also considered at pre-application stage including Hardie Plank, Supertech Weatherboard and Valcan Weatherboard however, the proposed Cedral Click product is considered to be the most appropriate product of this material type.

- 11.21 The Cedral Click cladding would be installed in Coco Brown colour which would appear similar to the colour of the existing timber cladding when first installed prior to being weathered by the sun and this is considered to be the most appropriate approach due to the inherent challenges in attempting to match the natural pattern of weathering on the existing cladding.
- 11.22 The external finish of the Cedral Click cladding includes a natural wood grain texture which is etched into the boards and includes sufficient variation to avoid the facades of the buildings appearing too uniform or monolithic. This effect can be maximised by the appropriate sequencing of the cladding boards during installation and cut pieces would be touched up in match colour staining to avoid the core material of the boards showing through.
- 11.23 The replacement of the existing timber decking on the balconies with an aluminium product, Ryno Balca Smart in Quartz Grey would not compromise the appearance of the buildings and would be acceptable. Concerns have been raised in the public consultation responses that the proposed aluminium decking may result in additional noise from rain drops and footsteps however this would not be expected to be significant as the product is designed for external applications and these concerns do not amount to grounds for refusal in and of themselves.
- 11.24 The grade II listed East Greenwich Gas Works War Memorial located 50m to the north west of the site within Peninsula Park however due to the separation distance from the nearest residential block of the development as well as the nature of the proposal only relating to the fascia materials of the blocks the proposed development would not materially affect the setting of the war memorial.

## **12 Biodiversity, Ecology & Trees**

- 12.1 Policy G7 of the London Plan states development proposals should ensure that, wherever possible, existing trees of value are retained.
- 12.2 Core Strategy policy OS4 states that Royal Greenwich's rich biodiversity and geodiversity will be protected, restored and enhanced, including the priority habitats and species identified in the Greenwich Biodiversity Action Plan.
- 12.3 Core Strategy Policy OS(f) requires development proposals to take account of ecological factors including impacts on trees and biodiversity.

## *Trees*

- 12.4 London plan policy G7 states development proposals should ensure that, wherever possible, existing trees of value are retained. RBG Local Plan Policy OS(f) 'Ecological factors' requires development proposals to take account of ecological factors including impacts on trees and biodiversity, with part (iv) seeking "The retention of trees and the protection and enhancement of natural and ecological features, ... and other features where these will contribute to the biodiversity;"
- 12.5 The application is supported by an Arboricultural Impact Assessment ref: VYH24647aia\_ams dated 13/09/2024 which confirms that no trees are identified for removal, where appropriate scaffold construction can be designed around surveyed trees, however the report goes on to explain that some trees may need to be pruned back to facilitate scaffolding installation and cladding removal. Any tree surgery works would comply with BS3998:2010 Tree Work or more recently accepted arboricultural good practice and be approved by the LPA and project arboriculturist prior to any commencement.
- 12.6 The proposed works are unlikely to significantly impact trees surrounding the site and subject to the implementation of appropriate tree protection measures, which are secured by condition, any impacts would be acceptable and justified by the wider fire safety aims of the development.

## *Biodiversity & Ecology*

- 12.7 Policy G7 of the London Plan states development proposals should ensure that, wherever possible, existing trees of value are retained.
- 12.8 Core Strategy policy OS4 states that Royal Greenwich's rich biodiversity and geodiversity will be protected, restored and enhanced, including the priority habitats and species identified in the Greenwich Biodiversity Action Plan.
- 12.9 Core Strategy Policy OS(f) requires development proposals to take account of ecological factors including impacts on trees and biodiversity.
- 12.10 The application is supported by an Ecological Impact Assessment (EIA) dated October 2024 prepared by Ramboll UK Ltd which confirms that no designated habitats were identified within the site or its immediate zone of influence (ZOI) up to 1 km from the site.

- 12.11 However, the EIA identifies that three non-statutory sites lie within 1 km of the site. These include:
- Greenwich Peninsula Ecology Park and Southern Park, a Site of Borough Grade I Importance for Nature Conservation, adjacent to the east of the Site boundary
  - River Thames Site of Metropolitan Importance for Nature Conservation, with closest access located 15 m north-east of the Site.
  - Lyle Park, a Site of Local Importance for Nature Conservation located 900 m north-east of the Site, beyond the River Thames.
- 12.12 As well as five Habitats of Principal Importance within 1km of the site including:
- One water body (Pond) is adjacent to the site.
  - Seven Mudflats with one 10m from the site.
  - Two Deciduous Woodlands.
  - Three Traditional Orchards.
  - Two Coastal Saltmarshes.
  - Four Good Quality Semi-improved Grasslands.
- 12.13 An extended UKHab Survey of the site conducted on 29<sup>th</sup> July 2024 included in the EIA identifies that the site itself is a mixture of relatively modern buildings and hardstanding, with the majority of the vegetation present at the site comprising non-native introduced shrub habitats (landscape planting and private gardens around the blocks). There are sections of large areas of introduced shrub and individual trees, while areas of modified grassland are situated within podiums inside the building blocks, outside the redline boundary, but have been included due to their close proximity to the proposed development.
- 12.14 No protected species were identified on the site. However, the site supports an assemblage of common invertebrates, garden birds, and small numbers of foraging bats.
- 12.15 The EIA considers that the potential impacts of the development are largely temporary and related to construction activities. These include temporary disturbance to habitats during scaffolding installation and potential noise and pollution effects. However, these impacts are expected to be mitigated through the implementation of a Construction Environment Management Plan (CEMP), which includes measures to reduce pollution and noise. Additionally, invasive species would be removed and replaced with native species, and wildlife boxes will be installed to enhance biodiversity.

- 12.16 The assessment did not identify any significant negative residual effects on biodiversity following the completion of the proposed development. No significant impacts on bats are expected as the site is not considered a primary roosting location. The development is unlikely to have significant impacts on nearby Sites of Importance for Nature Conservation (SINCs), as mitigation measures such as pollution prevention and noise reduction are planned.
- 12.17 The mitigation measures proposed include implementation of a Construction Environmental Management Plan (CEMP) which is secured by condition as well as timing works to avoid bird nesting season, the removal of invasive species and installation of bird, bat and invertebrate boxes in the façade of the buildings.
- 12.18 Under the Environment Act (2021), there are several exemptions under which developments can be excluded from requiring a full Biodiversity Net Gain assessment. These include sites with a de minimis (less than 25m<sup>2</sup>) area of vegetated habitat impacted (and no onsite priority habitats impacted). In addition, in accordance with national guidance habitats do not need to be recorded as lost when there are temporary impacts to a habitat and the area can be restored to both baseline habitat type and baseline condition within two years of the initial impact.
- 12.19 As the current proposals relate only to the removing of potentially dangerous materials that are no longer compliant with the updated building fire regulations and replacing this with safer new cladding, no long-term changes to vegetation surrounding the buildings would occur.
- 12.20 On this basis, and in accordance with the professional opinion of the applicant's Ecology consultant Ramboll UK Ltd, it is not considered that the proposed development would result in the loss of, or reduction in condition of, more than 25m<sup>2</sup> of non-priority onsite habitat or 5m for non-priority onsite linear habitats (and no onsite priority habitats impacted), and therefore the proposed development is exempt from a BNG assessment. Furthermore, the work is expected to be temporary in nature, with work in any one location expected to last less than two years. Officers are of the opinion that this is in line with the Environment Act and other legislation and planning policy.

### **13    Neighbouring Residential Amenity**

- 13.1    Core Strategy Policy DH(b) states that developments will only be permitted where it can be demonstrated that the proposal does not cause an unacceptable loss of amenity to adjacent occupiers by reducing the amount of daylight, sunlight, or privacy they enjoy, or result in an un-neighbourly sense of enclosure or loss of outlook.
- 13.2    Policy E(a) of the Core Strategy states that planning permission will not normally be granted where a proposed development or change of use would generally have a significant adverse effect on the amenities of adjacent occupiers or uses, and especially where proposals would be likely to result in the unacceptable emission of noise, light, vibrations, odours, fumes, dust, water and soil pollutants or grit. This is also reflected through Policy D14 of the London Plan.
- 13.3    The proposed cladding would not extend significantly further from the façade of the buildings than the existing cladding and would therefore not impact neighbouring properties or the residential flats within the development in terms of daylight/sunlight or outlook.
- 13.4    The development site and scheme of works proposed are substantial and expected to be prolonged, given the siting of the development within Greenwich Peninsula in an area with significant residential activity, outline Construction Management and Logistics Plans have been submitted which indicate that the proposed works could be implemented in an appropriate manner in terms of neighbour amenity impacts. Further details of construction management and logistics is recommended as a condition.
- 13.5    The proposal is consistent with policies D13 and D14 of the London Plan and Policy E(a) of the Royal Greenwich Local Plan Core Strategy (2014).

### **14    Transport, Access & Delivery/Servicing**

- 14.1    Policy T4 of the London Plan states that Development Plans and development proposals should reflect and be integrated with current and planned transport access, capacity and connectivity; and should not increase road danger.
- 14.2    Policy T4 of the London Plan outlines that developments should not increase road danger.

- I4.3 London Plan Policy T7 states that development proposals should facilitate safe, clean, and efficient deliveries and servicing.
- I4.4 London Plan policy T7 part G requires that development proposals should facilitate safe, clean, and efficient deliveries and servicing. Provision of adequate space for servicing, storage and deliveries should be made off-street, with on-street loading bays only used where this is not possible. Construction Logistics Plans and Delivery and Servicing Plans will be required and should be developed in accordance with Transport for London guidance and in a way which reflects the scale and complexities of developments. Part K requires that during the construction phase of development, inclusive and safe access for people walking or cycling should be prioritised and maintained at all times.
- I4.5 The site is in a predominantly residential area with a PTAL of 3-4 indicating a moderate level of accessibility by public transport. The site also has good access to the local cycle network. TfL's strategic network of signed Cycleways in the area.
- I4.6 The application is supported by outline Construction Logistics Plan (CLP) dated 25<sup>th</sup> September 2024 and Construction Management Plan dated 2<sup>nd</sup> October 2024 which confirm that the current proposal would be implemented concurrently with cladding replacement works on the GMV phase 2 blocks Becquerel Court and Farnsworth Courts recently granted under planning application ref: 24/4073/F.
- I4.7 The development site and scheme of works proposed are substantial and expected to be prolonged, given the siting of the development within Greenwich Peninsula in an area with significant residential activity, a full Construction Management and Logistics Plan (CMLP) is recommended as a condition to mitigate impacts on the highway.
- I4.8 Preliminary phasing for the works is as follows with the construction site split into a northern site for phases 1 and 2 and a southern site for phases 3 and 4 each with its own site compound:
- Phase 1: Metcalfe Court, Da Vinci Lodge and Newton Lodge
  - Phase 2: Maurer Court, Alamaro Lodge and Faraday Lodge
  - Phase 3: Holly Court and New Becquerel Court
  - Phase 4: Becquerel Court and Farnsworth Court (ref; 24/4073/F)
- I4.9 The preliminary phasing assumes four main phases of works, but with concurrent activities in the northern and southern sites (i.e. Phase 1 and Phase 3 start in parallel).

- 14.10 The site compound for the northern site would be located between Da Vinci Lodge, Alamaro Lodge and Metcalfe Court accessed from John Harrison Way and the site compound for the southern site would be located on Greenroof Way to the south of Farnsworth Court and would be accessed via School Bank Road.
- 14.11 The CLP identifies that the majority of construction traffic would approach the site from the A102 Blackwall Tunnel Approach, from either north of the river or from the A206 or A2 to the south. Traffic entering the northern site would travel up the northern section of John Harrison Way, execute a U-turn at the northern end and then travel south to enter via the lifting arm barrier on Teal Street. For the southern site compound, it is proposed that vehicles would enter via School Bank Road, passing through the existing barrier and turning right into Greenroof Way.
- 14.12 The southern site compound on Greenroof Way would be in relatively close proximity to Millenium Primary School with vehicles routes passing the school along School Bank Road. This arrangement is not objected to in principle subject to appropriate measures to mitigate the potential noise impact on the school and pedestrian safety. Further details of which are secured by condition.
- 14.13 According to the outline CLP at this stage, there is no expected requirement for the closure of any roads or footways however this would be confirmed as part of the full CMLP secured by condition. It is assumed that some parking bay suspensions may be required to accommodate deliveries. At both locations (on John Harrison Way and West Parkside), a buffer zone with well-spaced tree pits is provided between the parking bay and the footway and provides sufficient space to unload a truck without the need to close the footway and divert pedestrians accordingly.
- 14.14 Temporary parking suspensions would need to be agreed with the Council's Highways Officer and further details of any suspensions as well as measures to mitigate wider highways impacts are secured under the full CMLP condition. However, it is not anticipated at this time that any necessary parking suspensions would have an unacceptable impact on the highway network.



- 14.15 It may also be necessary to obtain licenses related to erection of scaffolding over the footway in some locations, where the footway is part of the public highway rather than private land, this will be confirmed as part of the conditioned full CMLP.
- 14.16 It is noted that the proposals are not anticipated to have any impact on bus operations, e.g. no bus route diversions or bus stop closures/suspensions are anticipated during the works.
- 14.17 It is provisionally assumed that for each phase (phases 1-4), there would be 4-5 trucks arriving (and subsequently departing) per day, split between scaffolding, material deliveries and waste removal. However, it is also assumed that the overlaps in phasing, i.e. overlap of phases 1 and 2 on the northern site and overlap of phases 3 and 4 on the southern site, would be managed such that there will be no more than 5 trucks arriving on each of the northern and southern site on a typical day. Accordingly, this would equate to between 8-10 trucks arriving in the area each day.
- 14.18 It is assumed that there would be up to 30 operatives working on each phase, and that these would also overlap such that there are a maximum of 30 operatives on the northern site and 30 on the southern site at any given time. A workforce travel plan encouraging construction workers to use non-car modes of transport is secured by planning condition and the existing parking restrictions on the surrounding roads would further deter use of private vehicles by operatives.
- 14.19 It is acknowledged that the proposed scheme of cladding replacement works have the potential to significantly impact the surrounding highway network however the submitted outline CMP and CLP confirm in principle that the programme of works could be implemented without significant impacts on the safe and efficient operation of the highway network or on the surrounding public transport network.
- 14.20 Subject to the submission of further details as part of a full CMLP secured by condition, the following measures are proposed to mitigate any impacts on the highway network and to maintain highway safety:
- Deliveries are scheduled to avoid peak hours, especially during school drop-off and pick-up times, to reduce congestion.
  - The use of holding areas and consolidation centres is encouraged to reduce the number of vehicle trips by consolidating deliveries.
  - Measures are implemented to encourage sustainable freight modes and the use of greener vehicles to reduce emissions.

- Collaboration with nearby construction sites is encouraged to share resources and reduce overall vehicle movements.

14.21 Comments have been received from the Council's Highways Officer raising no objection to these proposals and the comments received from TfL are generally supportive although further detail and revisions to the CLP are recommended as part of a full CMLP secured via condition.

14.22 There may be an opportunity to take advantage of the site location to utilise maritime transport to reduce the volume of construction vehicles travelling by road in accordance sustainable freight principles however the submitted CMP considered unlikely to be a realistic proposition because transportation from the site to the neighbouring wharves would still require vehicle transportation. However, opportunities to utilise river freight would be considered further as part of the assessment of the full CMLP secured by condition.

14.23 It is considered that the proposal would have an acceptable impact and therefore comply with Policy T4 of London Plan.

## **15 Fire Safety**

15.1 London Plan Policy states that all development proposals must achieve the highest standards of fire safety. The policy requires that a Fire Statement, which is an independent fire strategy, produced by a third party, suitably qualified assessor, is submitted with all major development proposals.

15.2 London Plan policy D12 sets out that in the interests of fire safety and to ensure the safety of all building users, all development proposals must achieve the highest standards of fire safety. The policy requires all major development proposals should be submitted with a Fire Statement, which is an independent fire strategy, produced by a third party, suitably qualified assessor. The policy goes on to set out six criteria that must be identified within the strategy.

15.3 In January 2020 the Ministry of Housing, Communities & Local Government (MHGLC) published the 'Advice for Building Owners of Multi-storey, Multi-occupied Residential Buildings' which consolidated previous guidance notes in relation to the measures Building Owners should take to review External Wall Insulation systems and Spandrel Panels to their residential blocks and to assess the surety of their fire safety, and the potential risks to residents of external fire spread. The applicant had undertaken a review of the external

cladding and other elements which do not meet the appropriate standard for fire safety and require replacement.

- 15.4 The applicant has submitted a Planning Fire Statement ref: AF4637 issue 02 dated 30<sup>th</sup> September 2024 prepared by Ashton Fire, a suitably qualified assessor, as well as fire classification documents for the replacement cladding, which confirm that the replacement external façade materials would be acceptable in terms of fire risk and that the external façade materials used shall have a combustibility classification of A1 or A2-s1, d0.
- 15.5 Further assessment of the fire safety falls outside of the scope of this planning application and would be fully assessed at Building Control stage.

## **16 Equality Impacts**

- 16.1 Section 149 of the Equality Act 2010 (Public Sector Equality Duty ("PSED")) ("Equality Act") provides that in exercising its functions (which includes the functions exercised by the Council as Local Planning Authority), that the Council must have due regard to the need to-
- a) eliminate discrimination, harassment, victimisation and any other conduct that is prohibited by or under the Equality Act;
  - b) advance equality of opportunity between persons who share a relevant protected characteristic and persons who do not share it;
  - c) foster good relations between persons who share a relevant protected characteristic and persons who do not share it.
- 16.2 The protected characteristics set out in Section 4 of the Equality Act are: age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, race, religion or belief, sex and sexual orientation. The Equality Act acknowledges that compliance with the duties in section 149 may involve treating some persons more favourably than others, but that this does not permit conduct that would otherwise be prohibited under the Equality Act. The application proposals are not considered to conflict with this duty.
- 16.3 The application has also been considered in the light of the Human Rights Act 1998 and it is considered that the analysis of the issues in this case, as set out in this report and recommendation, is compatible with the Act.

## **17 Community Infrastructure Levy (CIL)**

- 17.1 The Mayor has introduced a London-wide Community Infrastructure Levy (CIL) to help implement the London Plan, particularly Policy DFI. The Mayoral CIL formally came into effect on 1st April 2012 (updated 2019), and it would be paid on commencement of most new development in Greater London that was granted planning permission on or after that date. The Mayor's CIL would contribute towards the funding of Crossrail. The Mayor has arranged boroughs into three charging bands. The rate for Greenwich is £25 per square metre.
- 17.2 The current application is not liable to this requirement.

## **18 RBG CIL**

- 18.1 The Royal Borough adopted its Local Community Infrastructure Levy (CIL) charging schedule, infrastructure (Regulation 123) list, instalments policy and exceptional circumstances relief policy on the 25<sup>th</sup> March 2015 and came into effect in Royal Greenwich on the 6th April 2015. A new CIL charging schedule came into effect in 2024 for all planning permission granted from 26 July 2024.
- 18.2 The current application is not liable to this requirement.

## **19 Implications for disadvantaged groups**

- 19.1 The implications for disadvantaged groups identified below are an integral part of the consideration of the development and community benefits as set out in the report:
- The proposal would provide new job opportunities in the construction phase of the development;
  - Planning permission would be subject to detailed construction management and logistics plans secured by condition to ensure that impacts on disadvantaged groups are satisfactorily mitigated during demolition and construction of the development.

## 20 **Conclusion**

- 20.1 In accordance with Section 38(6) of the Planning and Compulsory Purchase Act 2004 planning applications must be determined in accordance the development plan unless material considerations indicate otherwise.
- 20.2 It is considered that the proposal would seek to achieve compliance with relevant regulations and has achieved a design solution which would continue to respect the character and appearance of the area without having any unacceptable impacts on the living conditions of neighbouring properties. The proposal is therefore considered to accord with Development Plan policies and guidance specified above subject to the conditions in the decision notice.
- 20.3 Accordingly, it is recommended that permission be **granted** for application reference 24/3879/F, in line with Section 1 of this report.

### **Background Papers:**

National Planning Policy Framework (2024)

National Planning Practice Guidance

The London Plan (2021)

Royal Greenwich Local Plan: Core Strategy with Detailed Policies (2014)

Responses from consultations

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